

Camera video (with laser device) + remote control using ANT+

Produit : Electronic / Measuring devices

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USA

Product's definition

Category

In which category the product is classified ?

ELECTRONIC / MEASURING DEVICES - Camera video (with laser device) + remote control using ANT+

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Federal Law:

FCC regulations for radio frequency devices

Some electronic products will be considered an "intentional radiator" under Federal Communication Commission (FCC) rules. Intentional radiators are defined as any "device that intentionally generates and emits radio frequency energy by radiation or induction." [47 C.F.R. § 15.3\(o\)](#). According to [FCC guidance](#), this includes products that contain Bluetooth or WiFi connectivity. Any product that uses ANT+ will almost certainly be considered an intentional radiator. See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators. Note that where that card refers to Bluetooth specifically, it is equally applicable to all other "intentional radiators."

Note, however, that if a video camera product is not considered an "intentional radiator," it would almost certainly be considered an "unintentional radiator." An unintentional radiator is defined as "a device that intentionally generates radio frequency energy [Electromagnetic energy at any frequency in the radio spectrum between 9 kHz and 3,000,000 MHz] for use within the device, or that sends radio frequency signals by conduction to associated equipment via connecting wiring, but which is not intended to emit RF energy by radiation or induction." [47 C.F.R. § 15.3\(z\)](#). According to [FCC guidance](#), the majority of modern electronic products that are not considered "intentional radiators" will be regulated as "unintentional radiators." For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

FDA regulations for laser products

The U.S. Food and Drug Administration ("FDA") regulates certain laser products pursuant to Chapter V, Subchapter C of the Federal Food, Drug, and Cosmetic Act ("FDCA"). Regulations promulgated by the FDA with respect to electronic products that emit radiation are codified at [21 C.F.R. Chapter I, Subchapter J](#).

FDA's regulations include performance standards specifically applicable to laser products, which are codified at [21 C.F.R. Part 1040](#). The term "laser products" is defined as "any manufactured product or assemblage of components which constitutes, incorporates, or is intended to incorporate a laser or laser system. A laser or laser system that is intended for use as a

component of an electronic product shall itself be considered a laser product.” 21 C.F.R. § 1040.10(21). A “laser” is “any device that can be made to produce or amplify electromagnetic radiation at wavelengths greater than 250 nm but less than or equal to 13,000 nm or, after August 20, 1986, at wavelengths equal to or greater than 180 nm but less than or equal to 1.0x10⁶ nm primarily by the process of controlled stimulated emission.” [21 C.F.R. § 1040.10\(19\)](#). If products in this category contain lasers meeting the definition above, the products will be considered “laser products.”

Responsibility for compliance with the FDA standards applicable to laser products primarily rests with the manufacturers of the products. FDA regulations define “manufacturer” as “any person engaged in the business of manufacturing, assembling, or importing” laser products. [21 C.F.R. § 1000.3\(n\)](#). The regulations also contain definitions of “dealers” and “distributors” of laser products:

- A dealer is “a person engaged in the business of offering electronic products for sale to purchasers, without regard to whether such person is or has been primarily engaged in such business, and includes persons who offer such products for lease or as prizes or awards.” [21 C.F.R. § 1000.3\(f\)](#).
- A distributor is “a person engaged in the business of offering electronic products for sale to dealers, without regard to whether such person is or has been primarily or customarily engaged in such business.” [21 C.F.R. § 1000.3\(h\)](#).

In designing laser products, manufacturers must first determine the level of radiation to which human access is necessary during product operation in order for the product to perform its intended function. Manufacturers must then determine the class of their products according to the highest level of laser radiation accessible during operation. FDA regulations recognize four major hazard classes of laser products. The higher the class, the more powerful the laser is, and the greater the potential to pose serious injury if used improperly. In general, FDA classifies lasers based on the amount of human access during product operation to visible laser radiation in excess of emissions limits that are specified in the FDA regulations. The class of the product determines the requirements for controls, indicators, and warnings on the product and its accompanying literature. [FDA guidance](#) describes the laser hazard classes and gives examples of products in each class, as follows:

FDA Class	Laser Product Hazard	Product examples
I	Considered non-hazardous. Hazard increases if viewed with optical aids, including magnifiers, binoculars, or telescopes.	• Laser printers • CD players • DVD players
Ila, II	Hazard increases when viewed directly for long periods of time. Hazard increases if viewed with optical aids.	• Bar code scanners
IIla	Depending on power and beam area, can be momentarily hazardous when directly viewed or when staring directly at the beam with an unaided eye. Risk of injury increases when viewed with optical aids.	• Laser pointers
IIlb	Immediate skin hazard from direct beam and immediate eye hazard when viewed directly.	• Laser light show projectors • Industrial lasers • Research lasers
IV	Immediate skin hazard and eye hazard from exposure to either the direct or reflected beam; may also present a fire hazard.	• Laser light show projectors • Industrial lasers • Research lasers • Medical device lasers for surgery or skin treatments

In general, Class I limits apply to devices that have emissions in the ultraviolet, visible, and infrared spectra, and are limits below which biological hazards have not been established. In the visible and near infrared spectra there are separate Class I limits for radiant energy (power) and integrated radiance (radiance); both of these limits must be exceeded for the laser product to move from beyond Class I. If the lasers in Decathlon’s video camera are similar to those used in CD players, DVD players, or laser printers, then the video camera product would likely be considered a Class I device. However, [21 C.F.R. § 1040.10\(b\)\(5\)-\(11\)](#) and the table at [21 C.F.R. § 1040.10\(d\)](#) should be reviewed in order to determine into which class of laser products the Decathlon video camera will fall.

Batteries

Electronic products that rely on battery power may be subject to battery-related regulations. If products in this category contain a rechargeable battery or a battery charger, see the "Batteries" card or the "Sun Charger, Electrical Charger, USB Charger" card, respectively.

California Law:

Batteries and CEC Battery Charging System:

Some of the products in this category may include a regulated "battery charging system" (BCS). BCS are defined under California law as "all rechargeable batteries or devices incorporating a rechargeable battery and the chargers used with them." [20 Cal. Code Regs. § 1602](#). Some California requirements pertaining to BCS are preempted by the federal BCS regulations.

Some of the products in this category may also include batteries. Please see the Batteries card for potentially applicable definitions.

Comments

Comments

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

English

Mandatory labelling on product

What are the mandatory labelling on the product ?

Federal Law:

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and "Sun Charger, Electrical Charger, USB Charger" card, respectively.

Country of Origin Marking Requirements

All products are required to comply with country of origin marking regulations. See [19 U.S.C. § 1304](#); [19 C.F.R. § 134.11](#); and importation section of this card. When an article or its container is required to be marked with the country of origin, the marking is considered sufficiently permanent if it will remain on the article or container until it reaches the ultimate purchaser. See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>.

FDA regulations for laser products

The manufacturers of “laser products” must provide the following information in English, in the form of a tag or label permanently affixed or inscribed on the laser product so as to be legible and readily accessible when the product is fully assembled for use. [21 C.F.R. § 1010.3\(a\)](#).

- The full name and address of the product’s manufacturer or the company under whose name the product is sold; or, if the product is sold under a name other than that of the manufacturer of the product, then the full name and address of the individual or company under whose name the product is sold, provided that the director for the Center for Devices and Radiological Health has been supplied with sufficient information to identify the product’s manufacturer. [21 C.F.R. § 1010.3\(a\)\(1\)](#).
- The place, month and year of manufacture (the place may be expressed in code if the manufacturer has provided the director for the Center for Devices and Radiological Health with the key to that code). The month and year must be expressed as follows: “Manufactured: (Month, Year)”. [21 C.F.R. § 1010.3\(a\)\(2\)](#).

Laser products other than “Class I” lasers must meet additional labeling requirements, which vary based on the classification of the laser. See [21 C.F.R. § 1040.10\(g\)](#). These labeling requirements should be reviewed in detail if Decathlon will be manufacturing, distributing, or selling laser products other than Class I lasers.

Also note that, as described below in the “certifications and registrations” section of this product card, manufacturers of laser products are required to certify that the product complies with applicable FDA regulations. This certification must “be in the form of a label or tag permanently affixed to or inscribed on such product so as to be legible and readily accessible to view when the product is fully assembled for use.” [21 C.F.R. § 1010.2](#).

California Law (batteries and CEC Battery Charging System): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

There are also specific requirements for battery charging systems under California law (to the extent not preempted by federal law); please see the corresponding section of the Sun Charger, Electrical Charger, USB Charger card for a description of these requirements, if applicable.

Massachusetts Law (mercury-added products): No one may sell a mercury-added product unless the product is labeled by the manufacturer as follows ([MGL 21H, 310 CMR 75](#)). A “mercury-added product” is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices.

The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product. Manufacturers of products that contain an irremovable mercury-containing lamp used for backlighting shall meet the product labeling requirements of this section by placing the label on the product or its care and use manual. These laws do not apply to the labeling of those products whose only mercury component is a removable mercury-added lamp or button cell battery.

Before a mercury-added product is sold in Massachusetts, the manufacturer must 1) submit a compliant labeling plan to the Massachusetts Department of Environmental Protection, or 2) label the product in compliance with a labeling plan approved by another state that is a member of the Interstate Mercury Education and Reduction Clearinghouse.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product’s useful life 2) as part of the product’s description either in the catalog or on the website used to place the online order.

New York (mercury-added consumer products): The labeling of “mercury-added consumer products” must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Federal Law:

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators (if applicable), please see the “Sun Charger, Electrical Charger, USB Charger” card.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements. There are also specific requirements for battery charging systems under California law; please see the corresponding section of the Batteries card for a description of these requirements, if applicable.

Massachusetts Law (mercury-added products): In addition to the label on the product, the packaging for a mercury-added product must also be labeled, except when the product label can easily be viewed through the packaging, to inform prospective purchasers and product users, prior to purchase, that the product contains mercury and will need to be managed properly at the end of its useful life ([MGL 21H, 310 CMR 75](#)). The label must be consistent with the product labeling requirements.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York (mercury-added consumer products): The labeling of “mercury-added consumer products” must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ? In which format, do we have to deliver the instruction manual to our customers ?

Federal Law:

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators, please see the “Sun Charger, Electrical Charger, USB Charger” card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and “Sun Charger, Electrical Charger, USB Charger” card, respectively.

FDA regulations for laser products

Manufacturers of “laser products” are required to include the following information as part of any user instructions or operational manual that is regularly supplied with the product (or by other means, if user instructions or operational manuals are not regularly supplied with the product):

- Adequate instructions for assembly, operation, and maintenance, including clear warnings concerning precautions to avoid possible exposure to laser and collateral radiation in excess of the accessible emission limits in tables I, II–A, II, III–A, III–B, and VI of [21 C.F.R. § 1040.10\(d\)](#), and a schedule of maintenance necessary to keep the product in compliance with [21 C.F.R. § 1040.10](#).
- A statement of the magnitude, in appropriate units, of the pulse durations(s), maximum radiant power and, where applicable, the maximum radiant energy per pulse of the accessible laser radiation detectable in each direction in excess of the accessible emission limits in table I of [21 C.F.R. § 1040.10\(d\)](#) as determined under [21 C.F.R. § 1040.10\(e\)](#).
- Legible reproductions (color optional) of all labels and hazard warnings required by [21 C.F.R. § 1040.10\(g\)](#). The corresponding position of each label affixed to the product shall be indicated or, if provided with the product, a statement that such labels could not be affixed to the product but were supplied with the product and a statement of the form and manner in which they were supplied shall be provided.
- A listing of all controls, adjustments, and procedures for operation and maintenance of the laser, including the warning “Caution—use of controls or adjustments or performance of procedures other than those specified herein may result in hazardous radiation exposure.”
- In the case of laser products other than laser systems, a statement of the compatibility requirements for a laser energy source that will assure compliance of the laser product with 21 C.F.R. § 1040.10.
- In the case of laser products classified with a 7 millimeter diameter aperture stop as provided in 21 C.F.R. § 1040.10(e)(3)(i), if the use of a 50 millimeter diameter aperture stop would result in a higher classification of the product, the following warning shall be included in the user information: “CAUTION – The use of optical instruments with this product will increase eye hazard.”

[21 C.F.R. §§ 1040.10\(h\)\(1\)\(i\)-\(vi\)](#).

Warnings - General ones

Are general warnings required ? If yes, which ones ?

For requirements applicable to products that contain batteries, please see the "Batteries" card.

See also the Labeling sections of this card for warnings applicable to FDA-regulated laser products.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Federal Law:

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and “Sun Charger, Electrical Charger, USB Charger” card, respectively.

Illinois Law (lead): No one may sell any lead-bearing substance that may be used by the general public, unless it bears a warning statement as provided by federal law ([410 ILCS 45](#)). If no federal rule exists, lead-bearing substances that contain lead-based paint or other form of lead must be labeled as: ““WARNING CONTAINS LEAD. MAY BE HARMFUL IF EATEN OR CHEWED. MAY GENERATE DUST CONTAINING LEAD. KEEP OUT OF THE REACH OF CHILDREN.” The warning statement must be located in a prominent place on the item or package, such that consumers are likely to see the statement when it is examined under retail conditions. The statement must be conspicuous and not obscured by other written matter. The statement must be legible and contrast with the typography, layout, and color of the other printed matter. Compliance with [16 CFR 1500.121](#) constitutes compliance with these display requirements. The manufacturer or importer of record is responsible for complying with these requirements.

"Lead-bearing substance" means any item containing or coated with lead such that the lead content is more than six-hundredths of one percent (0.06%) lead by total weight; or more than 1 milligram per square centimeter in the dried film of paint or previously applied substance.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Decathlon is not required to indicate a target age for these products; however, if the product would be more hazardous for children below a certain age, we recommend stating a minimum age to minimize liability for use by persons below that age.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Federal Law:

Country of Origin Marking Requirements

Failure to adhere to Country of Origin Marking Requirements may result in imposition of an additional 10% duty, withholding of release from U.S. Customs until properly marked, and reimbursement of expenses of customs officials overseeing same.

FCC Radio Frequency Devices

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 U.S.C. § 312\(b\)](#).

FDA regulations for laser products

Violations of FDA's requirements for laser products are punishable by a fine of up to \$1,000; each product involved constitutes a separate violation, for up to a maximum civil penalty may not exceed \$300,000. [21 U.S.C. § 360pp\(b\)](#). The United States may bring an action to restrain dealers and distributors from selling or otherwise disposing of lasers that do not conform to the performance standards required by 21 U.S.C. § 360kk. 21 U.S.C. § 360pp(a).

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. There are also specific requirements for battery charging systems under California law. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties of up to \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the "Sun Charger, Electrical Charger, USB Charger" card for additional details.

Illinois Law (lead): A manufacturer or importer who fails to properly label lead-bearing substances subject to a civil fine between \$50 and \$5,000 per day and could face criminal penalties as well ([410 ILCS 45](#)).

Massachusetts Law (mercury-added products): A violation of this law may be punished by a fine of up to \$25,000 and/or imprisonment for up to two years for each violation; or a civil penalty up to \$25,000 for each violation. Each day each violation occur is a separate offense ([MGL 21H](#)).

New York Law (mercury-added products): Violation of New York's mercury-added consumer products labeling rules is punishable by a fine of up to \$100 for the first violation and up to \$500 for additional violations. ([Environmental Conservation Law § 71-2724](#)).

Comments

Comments

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

None identified.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

None identified.

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Laser Products: Reporting of Accidental Radiation Occurrences

Manufacturers of laser products must immediately report to the Director of FDA's Center for Devices and Radiological Health all known or suspected (if there are reasonable grounds to suspect that an incident has occurred) "accidental radiation occurrences" reported to or otherwise known to the manufacturer, and arising from the manufacturing, testing, or use of any laser product introduced or intended to be introduced into commerce by such manufacturer. An "accidental radiation occurrence" is defined as "a single event or series of events that has resulted in injurious or potentially injurious exposure of any person to electronic product radiation as a result of manufacturing, testing, or use of" a laser product. [21 C.F.R. § 1000.3\(a\)](#). Reasonable grounds for reporting include, but are not limited to, professional, scientific, or medical facts or opinions documented or otherwise that conclude or lead to the conclusion that such an incident has occurred. [21 C.F.R. § 1002.20\(a\)](#).

Per [this guidance](#), FDA strongly prefers to receive radiation safety reports electronically, either by email (RadHealthCustomerService@fda.hhs.gov) or via FDA's eSubmitter software program. Reports should be submitted in PDF format, or packaged by the eSubmitter packaging procedures, and attached to the submitting email. [Form FDA 3649](#) can be used for accidental radiation occurrence reporting purposes.

The report must include the following:

1. The nature of the accidental radiation occurrence;
2. The location at which the accidental radiation occurrence occurred;
3. The manufacturer, type, and model number of the electronic product or products involved;
4. The circumstances surrounding the accidental radiation occurrence, including causes;
5. The number of persons involved, adversely affected, or exposed during the accidental radiation occurrence, the nature and magnitude of their exposure and/or injuries and, if requested by the Director of the Center for Devices and Radiological Health, the names of the persons involved;
6. The actions, if any, which may have been taken by the manufacturer to control, correct, or eliminate the causes and to prevent reoccurrence; and
7. Any other pertinent information with respect to the accidental radiation occurrence.

Notification of Defects or Failure to Comply

Any manufacturer who discovers that any laser product produced, assembled, or imported by that manufacturer which has left its place of manufacture and which has a defect or fails to comply with an applicable Federal standard must, per [21 C.F.R. § 1003.10](#):

1. Immediately notify the Secretary of Health and Human Services (the “Secretary”), in accordance with [21 C.F.R. § 1003.20](#); and
2. Except as authorized by § 1003.30, furnish notification with reasonable promptness to the following persons: (1) the dealers or distributors to whom such product was delivered by the manufacturer; and (2) the purchaser of such product and any subsequent transferee of such product (where known to the manufacturer, or where the manufacturer, upon reasonable inquiry to dealers, distributors, or purchasers, can identify the present user).

Per 21 C.F.R. § 1003.20, the notification required by § 1003.10(a) must be confirmed in writing to the Secretary, and must include the following information:

1. Identification of the product or products involved;
2. The total number of product units produced, and the approximate number of product units that have left the place of manufacture;
3. The expected usage of the product, if known to the manufacturer;
4. A description of the defect in the product, or the manner in which the product fails to comply with the applicable Federal standard;
5. An evaluation of the hazards reasonably related to the defect or the failure to comply with the Federal standard;
6. A statement of the measures to be taken to repair such defect, or to bring the product into compliance with the Federal standard;
7. The date and circumstances under which the defect was discovered; and
8. The identification of any trade secret information which the manufacturer desires to keep confidential.

Per [21 C.F.R. § 1003.21\(a\)](#), the manufacturer notification required by § 1003.10(a) to dealers, distributors, and subsequent purchasers must be in writing, and must include (in addition to any information that the Secretary may specifically require):

1. The information required to be sent to the Secretary pursuant to § 1003.20, as noted above, and instructions with respect to the use of the product pending the correction of the deficit;
2. A clear evaluation, in non-technical terms, of the hazards reasonably related to any defect or failure to comply; and
3. The following statement: “The manufacturer will, without charge, remedy the defect or bring the product into compliance with each applicable Federal standard in accordance with a plan to be approved by the Secretary of Health and Human Services, the details of which will be included in a subsequent communication to you.” However, if, at the time the notification is sent, the Secretary has approved a plan for the repair, replacement, or refund of the product, then the notification may include the details of the approved plan in lieu of the above statement.

There are specific marking requirements and mailing instructions for the envelopes containing the notification, as set forth at 21 C.F.R. §§ 1003.21(b) and 1003.21(c). The manufacturer must also provide the Secretary a copy of all notices, bulletins, or other communications sent to the dealers, distributors, purchasers, or subsequent transferees regarding any defect in a product or failure of such product to comply with an applicable Federal standard. 21 C.F.R. § 1003.22(a). If the Secretary determines the content of such notices to be insufficient to protect public health or safety, then the Secretary may require additional notice to the recipients, or make such notification by whatever means the Secretary deems appropriate. 21 C.F.R. § 1003.22(b).

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Federal Law:

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators (if applicable), please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" card and the "Sun Charger, Electrical Charger, USB Charger" card, respectively.

Manufacturers of laser products must design and manufacture these products in compliance with the FDA's performance standards for laser products, which are codified at [21 C.F.R. Part 1040](#). An FDA compliance guide available at: <https://www.fda.gov/downloads/MedicalDevices/DeviceRegulationandGuidance/GuidanceDocuments/UCM095304.pdf> provides a brief overview. See the sections below for additional details.

Massachusetts (lasers):

In Massachusetts, all Class 3B and Class 4 laser devices are required to be registered with the state RCP. [Massachusetts Laser Registration Application](#).

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Federal Law:

For requirements applicable to intentional radiators please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to unintentional radiators if applicable), please see the "Sun Charger, Electrical Charger, USB Charger" card.

FDA regulations for laser products

Laser products must meet FDA performance standards, which are codified at 21 C.F.R. Part 1040. These requirements vary based on the classification of the laser. Class I laser products must be equipped with a protective housing that prevents human access during operation to laser and collateral radiation that exceeds specified limits wherever and whenever such human access is not necessary for the product to perform its intended function. [21 CFR § 1040.10\(f\)\(1\)](#). Class I laser products must also be equipped with safety interlocks where removal of the protective housing could permit exposure to radiation in excess of specified limits. 21 C.F.R. § 1040.10(f)(2). Laser products classified as Class II and higher are subject to additional performance requirements.

Electrical aspects

What are requirements regarding electrical aspects ?

See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators, if applicable.

Inflammability

Are there any specific requirements to ensure inflammability?

None identified.

Hygiene

What are the rules regarding hygiene ?

None identified.

Radioactivity

What are the rules regarding radioactivity ?

None identified.

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators, if applicable.

Products making noise

What are the requirements regarding products making noise ?

None identified.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Batteries (general): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

Based on our understanding of Decathlon's products in this category, these will all be excluded from California's RoHS-like legislation because they do not have screens greater than four inches in size (measured diagonally), do not have playback functionality, and are not a Cathode Ray Tube device, computer, peripheral, television, or printer. However, if any of the electronic products within this category might fall into one of these categories, they may be subject to RoHS-like restrictions in California.

See the Chemical Substances Insert for additional information.

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Federal Law: None identified.

California law:

CA Toxics in Packaging Prevention Act

The California Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11---25214.26](#), prohibits the production, sale, or promotion of packages or packaging components in which any of the metals cadmium, lead, mercury, or hexavalent chromium either (a) have been intentionally introduced, or (b) have a combined incidental presence greater than 100 parts per million by weight. A "package" is defined as any container providing a means of marketing, protecting, or handling a product, including unsealed receptacles such as crates, cups, wrapping films, and bags. A "packaging component" is defined as any individual assembled part of a package, including blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks, labels, dyes, pigments, adhesives, stabilizers, or any other additives. [Id. § 25214.12](#). The Toxics in Packaging Prevention Act distinguishes between "manufacturers" of packages and packaging components, versus "purchasers" who purchase and take title to a package or packaging component for the purpose of packaging a product manufactured, distributed, or sold by the purchaser. [Id. § 25214.12](#). Decathlon would be a "purchaser" under this law. Packaging manufacturers are required to provide a Certificate of Compliance to the purchaser of the packaging stating that the package or packaging component is in compliance with the Toxics in Packaging Prevention Act. If the manufacturer does not provide a Certificate of Compliance, the purchaser must request it. Purchasers are required to retain Certificates of Compliance for as long as a package or packaging component is being used. DTSC may request these from purchasers at any time. [Id. § 25214.16](#); see DTSC Fact Sheet, [Toxics in Packaging: Information for Purchasers of Packaging](#) (Jan. 2009).

Penalties. Violations of the CA Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11---25214.26](#), are subject to administrative penalties, [id. § 25187](#), and civil penalties for intentional or negligent violations of \$25,000 per separate violation or per day of a continuing violation, [id. § 25189](#). Knowing and intentional violations are punishable by a criminal fine of not less than \$5,000 nor more than \$100,000, by imprisonment for not more than one year, or by both the fine and imprisonment. [Id. § 25214.22.1](#). Purchasers of packaging who offer their own products for sale in packaging that violates this law may assert an affirmative defense that they relied on a Certificate of Compliance from the packaging manufacturer, had no reason to know the packaging was not in compliance, and took immediate corrective action upon receiving a notice of violation from DTSC. This affirmative defense is not available if a purchaser has already been found in violation at least two times in the preceding three years. [Id. § 25214.22](#).

CA Rigid Plastic Packaging Container Program

The California Rigid Plastic Packaging Container Program, [14 CCR §§ 17943–17949](#), requires product manufacturers who sell products held in RPPCs to meet one of several compliance options. "Rigid plastic packaging container" (RPPC) generally means a plastic packaging container that is made entirely of plastic (except for incidental portions of the packaging), has a

relatively inflexible shape or form, has a capacity between 8 ounces and 5 gallons, and is capable of at least one closure. Compliance options include:

- Making the RPPC with at least 25% post-consumer material;
- Reducing the RPPC's weight by at least 10%, including relative to similar packaging;
- Concentrating the [formulated] product held in the RPPC by at least 10%;
- Establishing that the RPPC is routinely reused at least 5 times;
- Establishing that the RPPC is routinely returned and refilled at least 5 times; or
- Establishing that the RPPC is recycled at least 45% of the time.

Container manufacturers are required to provide product manufacturers a certification of compliance for any RPPCs sold. Product manufacturers known or found to use RPPCs receive a 90-day notice from CalRecycle of registration requirements. If CalRecycle selects a product manufacturer for the compliance certification process, the manufacturer will receive a one-year notice of certification requirements (meaning, you would be notified a year ahead that you would need to certify compliance in the following calendar year). See CalRecycle, [California's Rigid Plastic Packaging Container \(RPPC\) Program](#) (Dec. 2015).

Penalties. Under the California RPPC Program, [14 CCR §§ 17943–17949](#), non-compliant product manufacturers may be assessed penalties of up to \$100,000. Violations may include, but are not limited to, failure to submit all required information, submitting incomplete information, or failing to comply with the law. Under the law, there is a three phase approach: (1) companies may be contacted by DTSC requesting that they register; (2) a small subset of the registered companies will receive a notice that they may be required to certify compliance the following calendar year; (3) a smaller subset of the notified companies will actually have to certify compliance with the CA RPPC requirements. Note: per [CalRecycle's webpage](#), have been no enforcement actions under this law since 2005.

CA Biodegradability Claims

[Cal. Pub. Res. Code §§ 42355–42358.5](#) restricts the use of “biodegradable,” “compostable,” and related claims about any plastic products or plastic packaging. It is unlawful to sell any product or packaging made of plastic — alone or in combination with other material — that is labeled “compostable,” “marine degradable,” “biodegradable,” “degradable,” “decomposable,” or in any other way implies that the item will break down, fragment, biodegrade, or decompose in a landfill or any other environment, unless the plastic product or plastic packaging meets the applicable standard of the following:

- ASTM D6400 for compostable plastics; or
- ASTM D6868 for biodegradable plastics used as coatings on paper and other compostable substrates.

See California State Attorney General, [Quick Reference Guide to “Biodegradable,” “Compostable,” and Related Claims on Plastic Products in California](#) (Dec. 2012).

Penalties (CA Biodegradability Claims): Violations of [Cal. Pub. Res. Code §§ 42355–42358.5](#) are subject to civil penalties of \$500 for the first violation of this chapter, \$1,000 for the second violation, and \$2,000 for the third and any subsequent violation.

CA Extended Producer Responsibility

On June 30, 2022, the governor signed [SB 54 \(Allen, Chapter 75, Statutes of 2022\)](#) that requires by 2032:

- 100% of packaging in the state to be recyclable or compostable
- 25% cut in plastic packaging
- 65% of all single-use plastic packaging be recycled

To stay informed on the latest information on the Packaging EPR rulemaking process and issues, sign-up for email updated by joining the [SB 54: Plastic Pollution Prevention and Packaging Producer Responsibility Act \(Packaging EPR\) listserv](#) or visit [this webpage](#).

Penalties. The department may issue a notice of violation to, and impose an administrative civil penalty not to exceed fifty thousand dollars (\$50,000) per day per violation on, any entity not in compliance with this chapter or any of the regulations the department adopts to implement this chapter, unless the entity meets the criteria of paragraph (5) of subdivision (a) of Section 42061, in which case the civil penalty shall not exceed twenty-five thousand dollars (\$25,000) per day per violation. Before determining whether to assess a penalty, the department may allow a producer or a PRO to develop and submit a corrective action plan to the department detailing how and when the producer or PRO will come into compliance. Cal. Pub. Res. Code § [42081](#).

IL Heavy Metals in Packaging (SCOPE): A "package" means a container providing a direct means of marketing, protecting, or handling a product, and includes a product unit package, an intermediate package, or a shipping container as defined by ASTM D996 ([415 ILCS 5/21.5](#)). "Package" also includes such unsealed consumer product receptacles as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags, and tubs. "Packaging component" means any individual assembled part of a package including, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, coatings, closure, ink, and labeling; except that coatings shall not include a thin tin layer applied to base steel or sheet steel during manufacturing of the steel or package ([415 ILCS 5/21.5](#)).

(PROHIBITION/REQUIREMENTS): No product may be offered for sale by its manufacturer or distributor in Illinois in a package that includes any ink, dye, pigment, adhesive, stabilizer, or other additive that contains lead, cadmium, mercury, or hexavalent chromium that has been intentionally introduced during manufacturing or distribution ([415 ILCS 5/21.5](#)). In addition, no package, packaging component, or product in a package may be offered for sale if the sum of the concentration levels of lead, cadmium, mercury, or hexavalent chromium present in the package or packaging component exceeds 100 ppm by weight. Packaging components including strapping, seals, fasteners, and other industrial packaging components intended to protect, secure, close, unitize, or provide pilferage protection for a product destined for commercial use are excluded from this regulation. The manufacturer or supplier of the packaging must provide the package's distributor with a certificate of compliance stating that a package or packaging component complies with these requirements.

Penalties: Violators may be subject to a civil penalty up to \$50,000 for the violation and an additional civil penalty up to \$10,000 per day during which the violation continues ([415 ILCS 5/42](#)).

Maine Law

Reduction of Toxics in Packaging

"Package" means a container used in marketing, protecting or handling a product. "Package" includes a unit package and a shipping container defined by the American Society for Testing and Materials in its annual book of standards as ASTM, D996; a food package; and unsealed receptacles such as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags and tubs.

"Packaging component" means any individual assembled part of a package such as, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks and labels. Tin-plated steel that meets the American Society for Testing and Materials specification A-623 must be considered as a single package component. Electrogalvanized coated steel and hot-dipped coated galvanized steel that meets the American Society for Testing and Materials specifications A-525 and A-879 must be treated in the same manner as tin-plated steel.

The act restricts the concentration levels of the following heavy metals contained in the packaging and packaging components to be less than 0.01% by weight:

·Lead

·Mercury

·Cadmium

·Hexavalent chromium

This act prohibits sales of food packaging containing phthalates and PFAS in Maine. This requirement does not apply to manufacturers of food or beverage products that have annual national sales of all food and beverage products of less than one billion dollars.

A manufacturer that is exempted from the phthalates and PFAS prohibition must submit a written request to the Department of Environmental Protection explaining that he or she fulfills the exemption requirements in this section.

The Department will decide whether they approve the exemption or not. A 2-year exemption may be granted to the qualified manufacturer. [32 M.R.S. 1733](#).

Penalties. Any manufacturer or supplier that violates the law could face a \$100 fine for each package or packaging component in violation. [32 M.R.S. 1736](#).

Coding of Plastic Containers

No person may distribute, sell, or offer for sale in Maine any plastic bottle or rigid plastic container without a molded, imprinted, or raised label indicating the type of plastic resin used to produce the plastic bottle or rigid plastic container. [32 M.R.S. § 1722](#).

Penalties: A violation shall be a civil violation for which forfeiture of not more than \$100 may be adjudged. Each container in violation constitutes a separate offense. [26 M.R.S. § 1725](#).

Maine Law (Extended Producer Responsibility Bill): Maine has established a [stewardship program for packaging](#). Producers of products will pay into a fund based on the amount and the recyclability of packaging associated with their products. These funds will be used to reimburse municipalities for eligible recycling and waste management costs, make investments in recycling infrastructure, and help Maine citizens understand how to recycle. This program's purpose is to reduce the volume and toxicity and increase the recycling of packaging material. It will provide support to municipalities in their recycling efforts and in doing so improve recycling outcomes for packaging material in Maine.

Massachusetts Law

MA Plastic Containers: No person may distribute or sell any plastic bottle or rigid plastic container in MA unless such product is labeled with a code indicating the plastic resin used to produce the bottle or container placed within a triangle of arrows ([MGL 94 § 323A](#)). "Rigid plastic container" includes any formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin and having a relatively inflexible finite shape or form with a capacity of eight ounces or more but less than five gallons. "Plastic bottle" is defined as plastic container that has a neck that is smaller than the body of the container, accepts a screwtype, snap cap or other closure and has a capacity of sixteen fluid ounces or more, but less than five gallons ([MGL 94 § 321](#)).

Penalties (MA Plastic Containers): Violators are subject to a civil penalty up to \$1,000 for each violation ([MGL 94 § 327](#)).

New Jersey Law:

NJ Hazardous Packaging: Under New Jersey's hazardous packaging law, is unlawful to offer a product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain any lead, cadmium, mercury, or hexavalent chromium that (a) has been intentionally introduced during manufacturing or distribution, or (b) is incidentally present in excess of 100 parts per million by weight (0.01%). ([N.J.S.A § 13:1E-99.47](#)). New Jersey package manufacturers are required to provide certificates of compliance to product manufacturers such as Decathlon; Decathlon must retain this certificate so long as the product is in use. ([N.J.S.A § 13:1E-99.51](#)). It is a defense if Decathlon relies on the written assurance of the packaging manufacturer or distributor (signed by an authorized representative of the manufacturer or distributor) that the packaging complies with New Jersey's hazardous packaging law. ([N.J.S.A § 13:1E-99.54](#)).

Penalties: Violation of New Jersey's hazardous packaging law carries a fine of up to \$25,000 per day. ([N.J.S.A § 13:1E-99.53](#), [N.J.S.A §13:1E-99.54](#)).

New York Law:

NY Hazardous Packaging. Under New York's hazardous packaging law, it is unlawful to offer any product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain lead, cadmium, mercury or hexavalent chromium in excess of 100 parts per million by weight (0.01%). ([Environmental Conservation Law §37-0205](#)). Note that it is a defense to any claim that Decathlon has violated New York's hazardous packaging law to show that Decathlon relied in good faith on the written assurance of the packaging manufacturer that the packaging met the requirements of New York's packaging law. This written assurance must be in the form of a certificate of compliance stating that the packaging is in compliance with Title 2 of Article 37 of the Environmental Conservation Law, and must also be signed by an authorized official from the packaging company.

Penalties: The first violation of New York's hazardous packaging law is punishable by a civil penalty not to exceed \$10,000; second and subsequent violations can result in fines up to \$25,000 for each violation. ([Environmental Conservation Law art 37, § 37-0201](#)).

Texas Law: No packaging specific requirements identified.

Washington Law:

WA Rigid Plastic Containers and Bottles: Rigid plastic containers and plastic bottles sold in Washington must be labeled with the resin type within triangular arrows ([RCW 70.95F](#)). Plastic is defined as material made of polymeric organic compounds and additives that can be shaped by flow. Rigid plastic container is a formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin, and having a relatively inflexible shape or form with a capacity 8 ounces to five gallons. A plastic bottle is a plastic container intended for single use that has a neck that is smaller than the body of the container, accepts a screw-type cap, snap cap, or other closure and has a capacity between 16 fluid ounces and five gallons.

Penalty (WA Rigid Plastic): One who sells a plastic bottle or rigid plastic container without appropriate labeling is subject to a civil penalty of \$50 for each violation, with a maximum of \$500 ([RCW 70.95F](#)). The seller may also be enjoined from continuing violations. Each distribution constitutes a separate offense.

WA Heavy Metals in Packaging: Packages and packaging components must contain less than 100 ppm of lead, cadmium, mercury, and hexavalent chromium ([RCW 70.95G](#)). The limit applies only if the metals were intentionally introduced as elements during manufacturing or distribution. Manufacturers must develop a certificate of compliance stating that its package or packaging component is in compliance with the metal requirements. Manufacturers must keep these certificates three years after the package's last sale or distribution, and certificates must be provided to the Washington Department of Ecology upon request.

Penalties (WA Heavy Metals Packaging). The Department of Ecology may prohibit the sale of any package for which a manufacturer has failed to respond to a request for a certificate of compliance within sixty days ([RCW 70.95G](#)).

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, which must undergo more stringent testing, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and the "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

California Proposition 65: Proposition 65 does not require testing, however, if a company is aware that a listed chemical is present and wishes to determine that a warning label is not required (i.e., to justify a decision not to provide a warning), testing may be conducted at any outside laboratory that is familiar with Proposition 65.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

For penalties associated with packaging violations, please see the packaging technical requirements section above.

Federal Law:

For sanctions applicable to products that contain batteries or battery chargers, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 USC § 312\(b\)](#).

In addition, the act of selling or leasing, offering to sell or lease, or importing a digital device that has not gone through the appropriate FCC equipment authorization procedure that is a violation of the Commission's rules and federal law, and may be subject to:

- forfeiture of all non-compliant equipment
- an administrative fine of up to 10,000/day per violation
- up to \$100,000/\$200,000 criminal penalty for an individual/ organization
- a criminal fine totaling twice the gross gain obtained from sales of the non-compliant equipment

Other than knowing and willful or repeated violations, most violations are settled via a negotiated civil penalty. See recent settlements for FCC enforcement actions related to radio frequency devices here: <https://www.fcc.gov/general/equipment-marketing-violations>.

FDA regulations for laser products

Statutory penalties

Violations of FDA's requirements for laser products are punishable by a fine of up to \$1,000; each product involved constitutes a separate violation, for up to a maximum civil penalty may not exceed \$300,000. [21 U.S.C. § 360pp](#).

HHS Secretary's determination that a laser product fails to comply or has a defect

If the Secretary of Health and Human Services, through testing, inspection, research, or examination of reports or other data, determines that any laser product does not comply with the applicable Federal standard or has a defect, the Secretary must immediately notify the product manufacturer in writing, specifying:

- 1) The defect in the product or the manner in which the product fails to comply with the applicable Federal standard;
- 2) The Secretary's findings, with reference to the tests, inspections, studies, or reports upon which such findings are based;

3) A reasonable period of time during which the manufacturer may present its views and evidence to establish that there is no failure of compliance, or that the alleged defect does not exist or does not relate to safety or use of the product by reason of the emission of electronic product radiation.

[21 C.F.R. § 1003.11\(a\)](#). If the Secretary provides a notice of defect or failure to comply, the manufacturer must be given the opportunity for a hearing before the FDA. Id.

For purposes of this section, a laser product is considered to have a defect which relates to the safety or use by reason of the emission of electronic product radiation if:

·It is a product which does not use the emission of electronic product radiation in order to accomplish its purpose, and from which such emissions are unintended, and as a result of its design, product, or assembly:

oIt emits electronic product radiation which creates a risk of injury, including genetic injury, to any person, or

oIt fails to conform to its design specifications relating to electronic radiation emissions; or

·It is a product which uses electronic product radiation to accomplish its primary purpose and from which such emissions are intended, and as a result of its design, production, or assembly, it:

oFails to conform to its design specifications relating to the emission of electronic product radiation; or

oWithout regard to the design specifications of the product, emits electronic product radiation unnecessary to the accomplishment of its primary purpose which creates a risk of injury, including genetic injury to any person; or

oFails to accomplish the intended purpose.

[21 C.F.R. § 1003.2](#).

Every product manufacturer that receives the notice described above must immediately advise the Secretary in writing of the total number of product units produced and the approximate number of such units that have left the place of manufacture. 21 C.F.R. § 1003.11(b). If, after the expiration of the period of time specified in the notice, the Secretary determines that the product has a defect or does not comply with the applicable Federal standard, and the manufacturer has not applied for an exemption pursuant to 21 C.F.R. § 1003.30, the Secretary must direct the manufacturer to furnish the notice to the persons specified in § 1003.10(b), in the manner specified in § 1003.21. The manufacturer must, within 14 days from the date of receipt of such directive, furnish the required notification. 21 C.F.R. § 1003.11(c).

California Law:

Any person who violates Proposition 65 by failing to provide a required warning regarding exposure to Proposition 65 listed chemicals may be liable for a civil penalty of up to \$2,500 per day for each violation. [Health & Saf. Code § 25249.7](#). In practice, Proposition 65 cases are typically settled with an average settlement amount in the \$50,000 range plus an agreement to either reformulate or provide Proposition 65 warnings for the product.

California law does not expressly set penalties for violations of its rules regarding PBDEs. The California Attorney general, however, has stated that violation of California's similar phthalates ban is a violation of California's Unfair Competition Law ([CA. Bus. and Prof. Code § 17200](#)). See guidance letter [here](#). Violations of that law are subject to civil penalties of up to \$2,500 per violation. Presumably, violations of California's rules on and PBDEs will be subject to similar punishment.

California Law (batteries and battery charging systems): If this product contains batteries, please see the corresponding section of the Batteries card for penalty information. Violations of the California Appliance Energy Efficiency Regulations, applicable to battery charging systems, are subject to administrative civil penalties for each non-compliant unit sold or offered for sale in California. [20 CCR § 1609\(a\)\(2\)](#). The enforcement regulations provide for civil penalties up to a maximum of \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#). See the batteries card for additional details.

Illinois Law (flame retardants): A person who manufactures or distributes products containing more than 0.001% of pentaBDE or octaBDE is subject to a fine between \$10,000 and \$25,000 for each violation ([410 ILCS 48](#)).

Maine Law (toxic chemicals): Violators may be subject to a \$2,500-\$25,000 criminal penalty for each day of the violation, except the minimum amount for knowing violations is \$5,000 for each day of the violation. Violators may be subject to a \$100-\$10,000 civil penalty for each day of the violation or, if the violation relates to hazardous waste, of not more than \$25,000 for each day of the violation. [38 M.R.S. § 349](#).

Maine Law (lead): This section may be enforced in a civil action brought by the Attorney General under the Maine Unfair Trade Practices Act, except that the following provisions apply as penalties for violations of this section.

A. For the first violation by a manufacturer a warning must be given instead of an enforcement by the Attorney General if the employer has the equivalent of 25 or fewer full-time, year-round employees.

B. For all other violations the following provisions apply as penalties for violations of this section.

(1) For the first violation of this section, the penalty is not more than \$100 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$5,000.

(2) For a 2nd violation of this section, the penalty is not more than \$500 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$25,000.

(3) For a 3rd or subsequent violation of this section, the penalty is not more than \$1,000 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$50,000.

(4) A penalty under this section may be waived by the court if it is determined that the person in good faith and with due diligence attempted to comply with the requirements of this section and promptly corrected after discovery any noncompliance with this section. [252 M.R.S. 1316-A](#).

Massachusetts Law (lead): A person who applies lead-based paint or glaze to a covered product or sells such a product is subject to a fine between \$100 and \$500 for each violation ([MGL 111.196](#), [105 CMR 460](#)). Each article to which a lead-based substance is applied constitutes a separate violation. A person who willfully applies a lead-based substance to a toy or sells such a toy is subject to imprisonment for up to three months for each violation. In addition, any article of personal property in violation of the lead-based substance law may be embargoed by the Massachusetts Department of Environmental Protection.

Massachusetts Law (banned hazardous substances): Violators are subject to a fine between \$100 and \$500 and/or imprisonment up to 90 days on the first offense and on subsequent offenses, subject to imprisonment for up to 1 year and/or a fine between \$600 and \$3,000 ([MGL 94B § 4](#)). When an authorized inspector has probable cause to believe that a product is a banned hazardous substance, he must mark the substance as banned and give notice to the manufacturer, the distributor, and the owner of the product ([MGL 94B § 5](#)). He must also embargo the product. The manufacturer, distributor, or owner may remove the product from public display but may not remove it from the premises. The product will be considered a banned hazardous substance until the proceedings are complete. If the court finds that the embargoed article is banned, the article will be destroyed at the expense of the manufacturer, distributor, or owner under supervision of the inspector, and all court costs and fees and storage expenses will be taxed against the manufacturer, distributor or owner.

New York Law (flame retardants): Violation of New York's law regarding brominated flame retardants is also a misdemeanor; each product made, sold or offered for sale is a separate violation. ([Environmental Conservation Law art 37, § 37-0111\(5\)](#)).

Washington Law (PBDE ban): The Department of Ecology may issue a warning letter to a manufacturer that produces, sells, or distributes prohibited products (i.e., products containing the banned PBDEs) ([RCW 70.76](#)). If compliance is not achieved one year after the warning letter is sent, the Department of Ecology may assess civil penalties: up to \$1,000/violation for a first offense and up to \$5,000 for each repeat offense. In addition, a manufacturer that knowingly produces, sells, or distributes prohibited products must recall the product and reimburse the retailer or any other purchaser for the product and any applicable shipping and handling for returning the products.

Comments

Guidance regarding potentially applicable exemptions from certain FDA laser product requirements is available here: <https://www.fda.gov/radiation-emitting-products/getting-radiation-emitting-product-market-frequently-asked-questions/radiation-emitting-products-industry-assistance-walk-through#3>

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to "intentional radiators," please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

FDA regulations for laser products

Manufacturers of "laser products" for which an applicable standard is in effect pursuant to 21 C.F.R. Chapter I, Subchapter J must furnish to the dealer or distributor of the product, at the time of delivery, a certification that the product conforms to the applicable standards. [21 C.F.R. § 1010.2\(a\)](#). The certification must be in the form of a label or tag permanently affixed to or inscribed on the product in a manner that is legible and readily accessible to view when the product is fully assembled for use, unless the applicable standard prescribes some other manner of certification. 21 C.F.R. § 1010.2(b).

The certification must be based on a test, in accordance with the applicable standard, of the individual product to which it is attached, or upon a testing program conducted in accordance with good manufacturing practices. 21 C.F.R. § 1010.2(c). Requirements for testing are set forth at [21 C.F.R. § 1040.10\(e\)](#).

California (CEC Battery Charging System): Under the California Appliance Energy Efficiency Regulations for Battery Charger Systems ("BCS"), BCS must be certified prior to sale or offer for sale in California. Certified products will be listed on the California Energy Commissions Appliance Efficiency Database of certified BCS products. If a product in this category includes a BCS, please see the Batteries card for additional information on BCS certification.

Massachusetts Law (mercury-added products): No mercury-added product shall be offered for final sale or use or distributed in the commonwealth without notification in writing by the manufacturer of the product to the department through IMERC within 30 days of the product's release in accordance with this section ([MGL 21H](#)).

Texas law (laser registration): Texas regulations require certain laser products to be registered with the State Department of Health Services. See 25 Tex. Admin. Code § 289.301. However, Class 1, Class 2 and 2M, and Class 3a lasers are exempt from these registration requirements. 25 Tex. Admin. Code § 289.301(e)(3). If Decathlon will be manufacturing, importing, or distributing lasers outside of these exempted categories, the Texas regulations should be reviewed in further detail.

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is

the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to "intentional radiators," please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

California (CEC Battery Charging System): If a product in this category includes a battery charging system ("BCS") as defined above, please see the Batteries card for additional information regarding certification of BCS under the California Energy Commission's standards.

Comments

Comments

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

Federal Law:

For requirements applicable to unintentional radiators, please see the "Sun Charger, Electrical Charger, USB Charger" card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and "Sun Charger, Electrical Charger, USB Charger" cards, respectively.

FDA Regulations for Laser Products

Manufacturers, dealers, and distributors of electronic products, including laser products, are subject to certain reporting requirements, which can vary significantly depending on the classification of the laser. The table at [21 C.F.R. § 1002.1](#) summarizes these requirements:

Manufacturer				Dealer & Distributor			
Product	Product Reports (§ 1002.10)	Supplemental Reports (§ 1002.11)	Abbreviated Reports (§ 1002.12)	Annual Reports (§ 1002.13)	Test Records (§ 1002.30(a))	Distribution Records (§ 1002.30(b))	Distribution Records (§§ 1002.40; 1002.41)
Class I lasers and products containing Class I lasers	X			X	X		
Class I laser products containing Class IIa, II and IIIa lasers	X			X	X	X	
Class IIa, II, IIIa lasers and products other than class I products containing such lasers	X	X		X	X	X	X
Class IIIb and IV lasers and products containing such lasers	X	X		X	X	X	X

These requirements as applied to Class I laser products are described in additional detail below. If Decathlon will be distributing laser products that are Class II and above, then the regulations should be consulted for additional requirements.

Requirements for Manufacturers of Class I Laser Products

Product reports

If Decathlon is the manufacturer of a Class I laser product, then, per [21 C.F.R. § 1002.10](#), it must submit, prior to the introduction of laser products into commerce, a product report to the Food and Drug Administration, Center for Devices and Radiological Health. Per [this guidance](#), FDA strongly prefers to receive product reports electronically, either by email (RadHealthCustomerService@fda.hhs.gov) or via FDA's eSubmitter software program. Reports should be submitted in PDF format, or packaged by the eSubmitter packaging procedures, and attached to the submitting email. The report must be labeled "Radiation Safety Product Report of (name of manufacturer)" and must:

- (a) Identify which listed product is being reported.
- (b) Identify each model of the listed product together with sufficient information concerning the manufacturer's code or other system of labeling to enable the Director to determine the place of manufacture.
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- (c) Include information on all components and accessories provided in, on, or with the listed product that may affect the quantity, quality, or direction of the radiation emissions.
- (d) Describe the function, operational characteristics affecting radiation emissions, and intended and known uses of each model of the listed product.
- (e) State the standard or design specifications, if any, for each model with respect to electronic product radiation safety. Reference may be made to a Federal standard, if applicable.
- (f) For each model, describe the physical or electrical characteristics, such as shielding or electronic circuitry, incorporated into the product in order to meet the standards or specifications reported pursuant to paragraph (e), above.
- (g) Describe the methods and procedures employed, if any, in testing and measuring each model with respect to electronic product radiation safety, including the control of unnecessary, secondary, or leakage electronic product radiation, the applicable quality control procedures used for each model, and the basis for selecting such testing and quality control procedures.
- (h) For those products which may produce increased radiation with aging, describe the methods and procedures used, and frequency of testing of each model for durability and stability with respect to electronic product radiation safety. Include the basis for selecting such methods and procedures, or for determining that such testing and quality control procedures are not necessary.
- (i) Provide sufficient results of the testing, measuring, and quality control procedures described in accordance with paragraphs (g) and (h) of this section to enable the Director to determine the effectiveness of those test methods and procedures.
- (j) Report for each model all warning signs, labels, and instructions for installation, operation, and use that relate to electronic product radiation safety.
- (k) Provide, upon request, such other information as the Director may reasonably require to enable him/her to determine whether the manufacturer has acted or is acting in compliance with the Act and any standards prescribed thereunder, and to enable the Director to carry out the purposes of the Act.

[21 C.F.R. § 1002.10](https://www.fda.gov/downloads/AboutFDA/ReportsManualsForms/Forms/UCM081592.pdf). FDA guidance for laser product reports is available here, <https://www.fda.gov/downloads/AboutFDA/ReportsManualsForms/Forms/UCM081592.pdf>

Annual reports

If Decathlon is the manufacturer of a Class I laser product, then it must also submit annual reports to FDA summarizing the records required by [21 C.F.R. § 1002.30](#), and providing the volume of products produced, sold or installed. [21 C.F.R. § 1002.13](#). The records required by [21 C.F.R. § 1002.30](#) are:

- Description of the quality control procedures with respect to electronic product radiation safety.
- Records of the results of tests for electronic product radiation safety, including the control of unnecessary, secondary or leakage electronic product radiation, the methods, devices, and procedures used in such tests, and the basis for selecting such methods, devices, and procedures.
- For those products displaying aging effects which may increase electronic product radiation emission, records of the results of tests for durability and stability of the product, and the basis for selecting these tests.
- Copies of all written communications between the manufacturer and dealers, distributors, and purchasers concerning radiation safety including complaints, investigations, instructions, or explanations affecting the use, repair, adjustment, maintenance, or testing of the listed product.
- Data on production and sales volume levels if available.
- A record of the manufacturer's distribution of products in a form which will enable the tracing of specific products or production lots to distributors or to dealers in those instances in which the manufacturer distributes directly to dealers.
- Records received from dealers or distributors pursuant to [21 CFR § 1002.41](#) (note that this is not applicable to Class I laser products)

Decathlon must maintain these records for 5 years. [21 C.F.R. § 1002.31](#). FDA guidance for annual reports is available [here](#). Decathlon's Class I laser products may qualify for certain exemptions from some of the above reporting and recordkeeping requirements. Please see the FDA guidance available [here](#) for more information. Note, though, that to qualify for this exemption, Decathlon, as the manufacturer of the product, (1) must test and certify that the exempted Class I laser products comply with the Federal performance standard contained in 21 C.F.R. §§ 1040.10 and 1041.11; and (2) must have submitted at least one product report on any similar or different type of laser product.

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

For requirements applicable to unintentional radiators, please see the “Sun Charger, Electrical Charger, USB Charger” card.

For requirements applicable to “intentional radiators,” please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and “Sun Charger, Electrical Charger, USB Charger” cards, respectively.

Comments

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

For requirements applicable to unintentional radiators, please see the “Sun Charger, Electrical Charger, USB Charger” card.

For requirements applicable to “intentional radiators,” please see the "Electronic equipment with Bluetooth" card.

For requirements applicable to products that contain batteries or battery chargers, please see the "Batteries" and “Sun Charger, Electrical Charger, USB Charger” cards, respectively.

FDA regulations for laser products

In addition to the general importing requirements discussed above, additional requirements apply to the importation of “laser products.” The FDA guidance available here <http://www.fda.gov/Radiation-EmittingProducts/ElectronicProductRadiationControlProgram/GettingaProducttoMarket/ucm202505.htm> provides a useful overview. In general:

- Radiation-emitting laser products shipped to the U.S. for sale are required to complete Form FDA 2877 (see link in “required forms” section, below).

- Every manufacturer of laser products, prior to offering the product for importation into the U.S., must designate a permanent resident of the U.S. as the manufacturer’s agent upon whom service of all processes, notices, orders, decisions, and requirements may be made for and on behalf of the manufacturer. [21 C.F.R. § 1005.25](#).

See the Importation Rules Insert for additional information.

Documents

What are the required documents ?

FDA regulations for laser products: Importing laser products requires Form #2877, available here: <https://www.fda.gov/downloads/AboutFDA/ReportsManualsForms/Forms/UCM080778.pdf>

For requirements applicable to unintentional radiators, please see the “Sun Charger, Electrical Charger, USB Charger” card.

For requirements applicable to intentional radiators, please see the "Electronic equipment with Bluetooth" card.

Time period

In which time period may we obtain the right to import ?

None specified. But see tips for new importers and exporters at <http://www.cbp.gov/trade/basic-import-export/importer-exporter-tips>

Administration

What is the administration in charge of importations ? Name and address ?

U.S. Customs & Border Protection

OPA/CBP INFO Center

1300 Pennsylvania Avenue N.W., MS: 1345

Washington, DC 20229

United States of America

Comments

Comments

Helpful CBP publication: <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>

OPA/CBP INFO Center Phone contact information:
General Inquiries: 877-227-5511

International Callers: 202-325-8000

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

U.S. CBP inspects imports generally. FCC also receives information regarding shipments falling within certain tariff codes and may examine or seek additional information regarding same.

FCC representatives may examine or test any radio frequency device that is imported, including intentional or unintentional radiators. If the radio frequency device has already entered the U.S., the subsequent owners must, upon request within one year of the date of entry, make that device available for examination or testing by the FCC. [47 C.F.R. § 2.1207](#).

Laser products may be refused admission into the United States unless there is a certification in the form of a label or tag affixed to the product, in the manner described in the Product Labeling section above. 21 C.F.R. § 1005.3. The Secretary of the Department of Health and Human Services may request to sample any laser product that has been offered for importation into the United States. [21 C.F.R. § 1005.10](#). If the Secretary makes a sampling request, the District Director of Customs having jurisdiction over the product will give notice of the Secretary's intention to sample to the owner or consignee of the product. If the notice so requires, the owner or consignee must hold the shipment of which the sample is typical and not release the shipment until notice is received of the results of the Secretary's sample testing, stating that the product is in compliance with the requirements for laser products. 21 C.F.R. § 1005.10.

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

See Certifications/Registrations section.

FCC requirements: As a general rule, no person may market a radio frequency device unless:

- (1) For devices subject to authorization under certification (required for intentional radiators in most instances), the device has been authorized in accordance with the rules in subpart J of this chapter and is properly identified and labeled as required by 47 C.F.R. § 2.925 and other relevant sections in this chapter; or
- (2) For devices subject to authorization under Supplier's Declaration of Conformity in accordance with the rules in subpart J of this part, the device complies with all applicable technical, labeling, identification and administrative requirements; or
- (3) For devices that do not require a grant of equipment authorization under subpart J of this chapter but must comply with the specified technical standards prior to use, the device complies with all applicable, technical, labeling, identification and administrative requirements.

For additional details and potential exemptions, see 47 C.F.R. § 2.803, available at:

https://www.ecfr.gov/cgi-bin/text-idx?SID=38b715d28b07f287d97cca93ec6ea010&mc=true&node=se47.1.2_1803&rgn=div8

Documents

What are the required documents ?

See Certifications/Registrations section.

Delay

What is the delay to obtain the right to commercialize ?

None identified.

Display in store

Is there some specific rules on the way to display the product in store ?

California Law: None identified, unless a Proposition 65 warning is required for the product under California law and Decathlon chooses to provide the warning via a sign or shelf tag in the store rather than by a marking on the product packaging.

Display on internet

Is there some specific mentions to display the product on internet ?

None identified.

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

See the “What are the mandatory labelling on the notice” section of this card.

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

None identified.

Documents

[Decathlon - Importation Rules Insert.pdf](#)

[Decathlon - Chemical Substances Insert.pdf](#)